

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
JUDGE R. BROOKE JACKSON

Civil Action: 20-cv-00076-RBJ
Courtroom Deputy: Julie Dynes

Date: September 27, 2021
Court Reporter: Sarah Mitchell

Parties

Counsel

ANITA MARTIN

*Anne Sulton
William Sulton*

Plaintiff

v.

PUBLIC SERVICE COMPANY OF COLORADO

*Meghan Martinez
Sarah Nolan*

Defendant

COURTROOM MINUTES

JURY TRIAL DAY ONE

Court in Session: 9:00 a.m.

Discussion held on length of trial.

9:03 a.m. Twenty-one (21) potential jurors are brought to the Court with thirteen (13) seated by random computer selection.

Court's preliminary remarks to jurors.

Court's statement of the case to jurors.

Court advises jury panel regarding its jury selection practice.

Attorneys and parties are introduced.

All jurors sworn for voir dire.

9:24 a.m. Voir dire of the jury panel by the Court.

9:42 a.m. Voir dire of the jury panel by Mr. Sulton.

9:57 a.m. Voir dire of the jury panel by Ms. Martinez.

Plaintiff's Peremptory Challenges:

1. 100430947
2. 100458618
3. 100453079

Defendant's Peremptory Challenges:

1. 100430179
2. 100442146
3. 100443717

10:10 a.m. Seven jurors sworn to try the case:

1. 100441046
2. 100430928
3. 100427001
4. 100461018
5. 100448805
6. 100431212
7. 100464874

Court instructs the jury on its practices for trial.

10:27 a.m. Court in recess – jury escorted out.

10:45 a.m. Court in session - jury escorted in.

10:48 a.m. Opening statement by Mr. Sulton.

10:55 a.m. Opening statement by Ms. Martinez.

Plaintiff, Anita Martin called and sworn.

11:19 a.m. Direct examination of Ms. Martin by Ms. Sulton.
Exhibits 1, 2 and 4 is admitted.

12:00 p.m. Court in recess – jury escorted out.

12:58 p.m. Court in session - jury not present.

Discussion held on the availability of Ms. Sulton.

ORDERED: A negative COVID test must be presented before Ms. Sulton will be allowed to return to the courtroom.

Jury escorted in.

1:04 p.m. Continued direct examination of Ms. Martin by Mr. Sulton.
Exhibits 8 and 9 are admitted.

1:49 p.m. Cross examination of Ms. Martin by Ms. Martinez.
Exhibits C, D, E, G, Z, QQ, RR and WW are admitted.

2:53 p.m. Court in recess – jury escorted out.

3:11 p.m. Court in session - jury escorted in.

3:13 p.m. Continued cross examination of Ms. Martin by Ms. Martinez.
Exhibits J, K, L, N, T, U and XXX.8 are admitted.

4:07 p.m. Redirect examination of Ms. Martin by Mr. Sulton.
Exhibit PP is admitted.

Plaintiff's witness, Mary Regan, called and sworn.

4:25 p.m. Direct examination of Ms. Regan by Mr. Sulton.

Jury excused, to return tomorrow at 9:15 a.m.

Discussion held on jury instructions and financial claims in the case.

Court in Recess: 4:53 p.m.

Trial continued.

Total time in Court: 6:32